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California Proposed Ban on Food Additives Moves to Governor

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California Assembly bill AB 418, authored by Assemblymember Jesse Gabriel (D-Woodland Hills) and co-sponsored by Consumer Reports and the Environmental Working Group (EWG), has passed the state Senate and Assembly is now in the hands of Governor Gavin Newsom. If signed into law, the bill would ban the use of brominated vegetable oil, potassium bromate, propyl paraben and Red Dye No. 3 as additives in food and drink products sold in the state. The chemicals are currently banned in the European Union due to alleged links to serious health problems, including higher risk of cancer, harm to the reproductive system and hyperactivity.

"We are thrilled to move A.B. 418 to Gov. Newsom's desk. This marks a major step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Gabriel, chair of the Assembly Committee on Privacy and Consumer Protection. "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives.

The bill, if signed by Gov. Newsom, will go into effect on January 1, 2027. Violators would face a civil penalty not to exceed $5,000 for a first violation, and not to exceed $10,000 for each subsequent violation.

Some have expressed concern that passage of the bill would create a patchwork of regulations in the country. In an Opinion article, Frank Yiannas, former FDA Deputy Commissioner of Food Policy and Response, urged Newsom to think carefully about the ban, noting that three of the five original ingredients targeted by the California ban are currently under review by FDA. "In the case of brominated vegetable oil (BVO), the FDA has already initiated steps to remove BVO from the U.S. food supply, thereby making the California action unnecessary," he argued, adding that "a state-by-state patchwork of different, emerging regulatory standards that would weaken our nation's food system and food safety efforts. Our nation is better when each state can help feed the rest of the states with a uniform standard of safe, available food."

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